

**JUSTIFICATION AND APPROVAL FOR OTHER THAN FULL AND OPEN
COMPETITION
41 U.S.C. 3304(a)(1)**

J&A No.: FY25-087

Pursuant to the requirements of the Competition in Contracting Act (CICA) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.3 and in accordance with the requirements of FAR 6.303-1, the justification for the use of the statutory authority under FAR Subpart 6.3 is justified by the following facts and rationale required under FAR 6.303-2 as follows:

1. Agency and Contracting Activity

The Department of Homeland Security (DHS), Office of Procurement Operations (OPO), Federal Protective Service (FPS), Acquisition Division (AD) proposes to extend the ordering period of Contract 70RFP118DE1000001, with Paragon Systems, Inc., for Armed Protective Security Officer (PSO) services at various sites throughout the New England territory (Maine, New Hampshire, Massachusetts, Vermont) on the basis of other than full and open competition.

2. Nature and/or Description of the Action being Approved

(a) Nature of action: FPS AD intends to procure protective security officer services on a noncompetitive basis for up to four (4) months, April 1, 2025 - July 31, 2025, to allow time to finalize award of the competitive follow-on Task Order and provide adequate time for transition. This action will result in a modification to extend the ordering period of the current contract to allow placement of a task order to continue critical PSO services throughout the New England territory. The task order will only be issued under this contract for the necessary length of time required, but not to exceed four (4) months. The current contract is set to expire on March 31, 2025. The follow-on procurement is currently in the pre-award phase with an anticipated award date no later than April 11, 2025. The follow-on effort requires a transition period of up to 120 days from the date of award to the performance start date. As such, this extension will allow time to complete the award and provide an adequate transition period to the new effort for this requirement.

(b) Name and address of the contractor.

Paragon Systems, Inc.
13900 Lincoln Park Drive, Suite 300
Herndon, VA 20171

(c) Contract type: Indefinite Delivery Indefinite Quantity, Firm Fixed Price

(d) Estimated total value: [REDACTED]

(e) Type of funding: Operations and Maintenance funds

(f) Year of funding: Fiscal Year 2025

(g) Solicitation number: Not Applicable

(h) Background information about the requirement: FPS AD intends to procure PSO services pursuant to FAR 6.302-1 as only one responsible source and no other sources will satisfy agency requirements for the continuation of PSO services at facilities throughout the New England territory.

3. **Description of Supplies/Services**

The purpose of this extension is to provide armed PSO services at locations throughout New England territory. Paragon Systems, Inc. is currently performing under the six-month extension period authorized via J&A FY24-00341 on September 26, 2024. Services are scheduled to end under this contract on March 31, 2025. To allow time to finalize the task order award and provide a transition period for the new follow-on task order, FPS AD finds it necessary to request approval for up to an additional four (4) months of service under FAR 6.302-1. This will extend the ordering period under Contract 70RFP118DE1000001 from April 01, 2025, through July 31, 2025.

The instant action is to allow FPS AD to continue procuring PSO services from Paragon Systems, Inc. under contract 70RFP118DE1000001 while processing the award of the competitive follow-on task order and the to provide an adequate transition period. This will ensure uninterrupted security services at federal facilities throughout the New England territory between the expiration of the existing contract and the start of full performance by the successful vendor under the follow-on effort. The proposed sole source extension will ensure services are provided while the award is being finalized and during the transition period for the new vendor to train and meet all requirements of the new task order prior to PSOs standing post. The requirement fulfills an existing government need, and the extension of the existing contract is the most advantageous and only practical method of fulfilling the government's need, price, and other factors considered. This contract extension also considers the government's need for continuity of operations and potential costs of disrupting operations. The period of performance for this extension is for up to four (4) months of additional PSO services from April 01, 2025, through July 31, 2025; at an approximate value of [REDACTED]

4. Identification of Statutory Authority Permitting Other Than Full and Open Competition.

The statutory authority permitting other than full and open competition is 41 U.S.C. 3304(a)(1) implemented by FAR 6.302-1, only one responsible source and no other supplies or services will satisfy agency requirements.

5. Identification of Exception to the Buy American Statute

Not applicable.

6. Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

Paragon Systems, Inc. is satisfactorily performing PSO services under Contract 70RFP118DE1000001 during the current period which runs October 01, 2024, through March 31, 2025. The contract is set to expire on March 31, 2025. FPS AD is in the process of awarding a competitive follow-on task order which was solicited via full and open competition under FPS AD Multiple Award Contract (MAC) via Request for Proposal (RFP) 70RFP124QE1000001 and is currently in the award phase. Due to unexpected delays and circumstances beyond the control of the contracting office, the Government requires additional time to award the follow-on task order and allow up to a 120-day transition period. Due to the amount and complexity of questions received from industry, there was a delay receiving responses from the FPS regional office. Further, the requirements of the solicitation changed based on these responses. This led to an extension of the original closing date by almost a month to allow industry time to review the responses, revise documents, and prepare their technical and price submissions properly. Finally, due the extension of the closing date, there was a delay in the start of the technical evaluation of quotes as the evaluation team was finishing their review of a concurrent solicitation's technical proposals before they could begin on the review of this requirement.

The follow-on requirement for this contract is estimated to be awarded on or before April 11, 2025, with an anticipated performance start date on or before August 01, 2025. The follow-on task order will have a transition period of up to 120 days from the date of award to the performance start date. This transition period enables the follow-on contractor to obtain all necessary equipment, licenses, training, and other certifications/ suitability requirements for its employees to be able to begin standing post at the start of performance. Due to extensive screening, training, licensing, and transition requirements for PSOs under the FPS program, another PSO firm cannot immediately replace the existing contractor without a severe and unacceptable degradation in overall security jeopardizing federal government personnel, visitors, and assets. For these reasons, it is also not feasible for any portion of the work to be segregated to allow for competition. The incumbent contractor, Paragon Systems, Inc., is familiar with the instant requirement, facility locations, and has a fully qualified staff in place and is the only contractor at this time that can immediately fulfill the requirement without delay or interruption of services.

As a result, an extension of services under the current contract is necessary to ensure a seamless transition takes place from the existing requirement to the follow-on effort.

Title 40 United States Code (U.S.C) §1315 gives DHS the responsibility to protect federal facilities and the people therein. Presidential Policy Directive 21 (PPD-21), and the National Infrastructure Protection Plan (NIPP) further refine DHS's responsibility to protect buildings, grounds, and property that are owned, occupied, or secured by the Federal Government. These documents also establish U.S. policy for the protection and resilience of the Nation's critical infrastructure and provide a framework for integrating efforts designed to enhance the safety of critical infrastructure. Given the reality of terrorist threats, it is in the best interests of DHS and the public to continue to allow the incumbent contractor to provide services until the follow-on task order is appropriately transitioned. Effective PSO services are integral to the FPS mission to respond to terrorist attacks, domestic workplace violence, trespassing, disorderly conduct, and emergency medical situations. PSO services also mitigate threats by detecting firearms, hazardous materials, and suspicious packages at these locations. Due to these critical roles, a modification to extend the current contract 70RFP118DE1000001 with Paragon Systems, Inc. is required to allow placement of a new competitive task order to provide continued services to ensure uninterrupted service, a seamless transition, and to eliminate potential disruption in PSO services.

7. Description of Efforts Made to Ensure that Offers are Solicited from as Many Potential Sources as is Practicable.

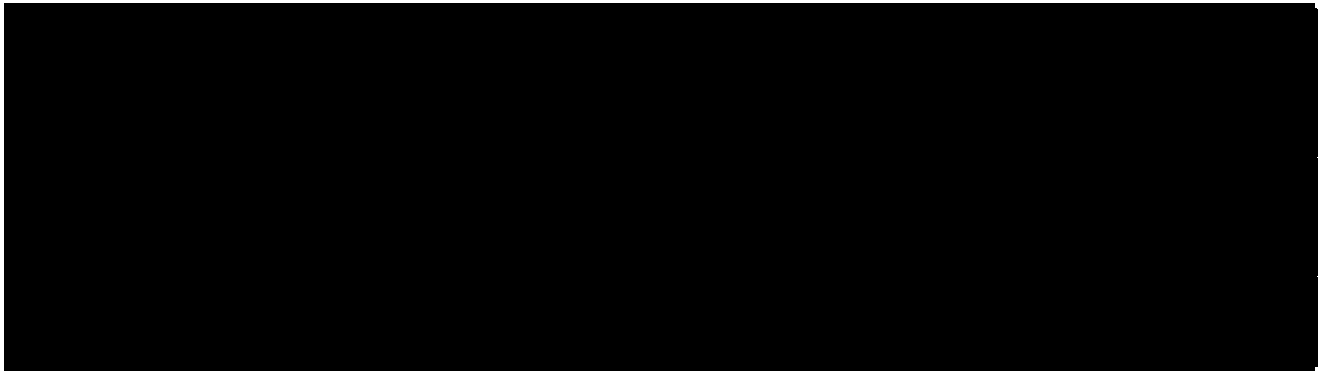
The circumstance restricting competition for this requirement is that "only one responsible source and no other supplies or services will satisfy agency requirements," pursuant to FAR 6.302-1. Therefore, no exception to the FAR 5.2 notification requirement applies, and FPS AD posted this requirement to SAM.gov on March 20, 2025, pursuant to FAR 5.201(b)(1)(ii). FPS AD intends to make this justification publicly available pursuant to FAR 6.305.

8. Determination by the Contracting Officer that the Anticipated Cost to the Government will be Fair and Reasonable.

The hourly rate of [REDACTED] is the rate proposed by Paragon Systems for the period of performance from April 01, 2025, through July 31, 2025, which will be modified into the contract under modification P00023. The proposed price by Paragon Systems is [REDACTED] currently being paid for under this contract. This increase in rates is attributed to costs resulting from uniform refresh, licensing updates and lease extensions.

The Contracting Officer has determined that the hourly rate of [REDACTED] for PSO services throughout the New England territory (Maine, New Hampshire, Massachusetts, Vermont) proposed for the pending J&A four-month extension period is fair and reasonable based on comparison of the proposed prices to historical prices paid for the same or similar items in accordance with FAR 15.404-1(b)(2)(ii). The price analysis table below

shows the comparison in hourly priced rates from different contracts that were competitively awarded for PSO Armed Guard Services for the FPS Eastern Zone to the price proposed for the J&A period. All contracts have similar Statements of Work and similar training/certification requirements as they are all for Armed PSO services.



As shown above, the proposed rate for the extension period is competitive to the rates for the other FPS PSO contract performed within the FPS Eastern Zone. As Collective Bargaining Agreements are in place under this contract, any other contractor would be required to pay PSOs the same wages and fringe benefits as the current contractor is currently paying its PSOs.

In accordance with FAR 15.403-1(b)(3), no certified cost or pricing data will be required because the service is commercially available to the general public.

9. Description of Market Research.

The agency has conducted market research for the new requirement and is familiar with the other potential sources and their qualifications. Based on our market research, other firms could provide PSO services at throughout the New England territory locations, however they could not do so by April 01, 2025, causing unacceptable delays or potentially jeopardizing the safety of government employees, government facilities and its visitors. Accordingly, no other contractor can provide the services without an unacceptable interruption in service at this time.

10. Any Other Facts Supporting the Use of Other Than Full and Open Competition.

Since it is essential that services continue without interruption for the security of federal facilities throughout the New England territory, the tenants that occupy those facilities and visitors, and the fact that Paragon is performing satisfactorily as documented under the current Contractor Performance Evaluation Assessment Report (CPAR), it is in the best interest of the government to extend contract 70RFP118DE1000001 for up to four (4) months with the current contractor.

11. A Listing of the Sources, if Any That Expressed, in Writing, an Interest in the Acquisition.

Not Applicable.

12. A Statement of the Actions, if Any, the Agency May Take to Remove or Overcome Any Barriers to Competition Before Any Subsequent Acquisition for Supplies or Services Required.

This requirement is for the sole purpose of issuing a modification to continue PSO services under Contract 70RFP118DE1000001 until the competitive follow-on task order is awarded and transitioned to start. FPS AD is currently processing a follow-on requirement which is taking longer than originally projected. The agency plans to make award no later than April 11, 2025, with the new award to start no later than August 01, 2025. It is essential that services continue without interruption for the security of federal facilities throughout the New England territory to include government personnel and visitors at these locations.